

IN THE \_\_\_\_\_ COURT OF \_\_\_\_\_, ARKANSAS  
\_\_\_\_\_ DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. \_\_\_\_\_

\_\_\_\_\_  
(First, Middle, and Last name) DEFENDANT

PETITION TO DISMISS AND SEAL OFFENSE IN POST ADJUDICATION DRUG COURT

PROCEEDING PURSUANT TO A.C.A. § 16-98- 303 {AND TO SEAL  
SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT }

Comes the Defendant and for his/her petition to seal the record  
states:

1. The defendant was arrested on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, and charge d with the offense(s ) of \_\_\_\_\_  
A Class \_\_\_\_\_ ☐felony ☐misdemeanor in violation of A.C.A. § \_\_\_\_\_.
2. The defendant plead guilty or nolo contendere to or was found guilty of \_\_\_\_\_, in violation of A.C.A. § \_\_\_\_\_, on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_.
3. The Defendant was placed on probation for a period of \_\_\_\_\_ months.

IN THE \_\_\_\_\_ COURT OF Example County, ARKANSAS  
\_\_\_\_\_ DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. 24-CR-001234

Reyes  
(First, Middle, and Last name) DEFENDANT

PETITION TO DISMISS AND SEAL OFFENSE IN POST ADJUDICATION DRUG COURT

PROCEEDING PURSUANT TO A.C.A. § 16-98- 303 {AND TO SEAL  
SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT }

Comes the Defendant and for his/her petition to seal the record  
states:

1. The defendant was arrested on the \_\_\_\_\_ day of Jordan Avery Reyes, \_\_\_\_\_, and charge d with the offense(s ) of \_\_\_\_\_  
A Class \_\_\_\_\_ ☐felony ☐misdemeanor in violation of A.C.A. § \_\_\_\_\_.
2. The defendant plead guilty or nolo contendere to or was found guilty of \_\_\_\_\_, in violation of A.C.A. § \_\_\_\_\_, on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_.
3. The Defendant was placed on probation for a period of \_\_\_\_\_ months.

4. The terms and conditions of Defendant's probation included the requirement that the Defendant successfully complete an approved drug court program.
5. The Defendant has successfully completed a drug court program.
6. The Defendant has received aftercare programming.
7. ☐ The Defendant has no pending felony charges in any state or federal court; or  
☐ The Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:  
\_\_\_\_\_  
\_\_\_\_\_
8. If applicable, on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, in case number(s) \_\_\_\_\_ in \_\_\_\_\_ County \_\_\_\_\_ Court the Defendant previously plead guilty or nolo contendere to or was found guilty of \_\_\_\_\_, in violation of A.C.A. § \_\_\_\_\_.
9. The offense(s) listed in Paragraph 8 above, if any, is/are a target offense as defined in A.C.A. § 16- 93 -1202(10)(A)(i).
10. The offense(s) listed in Paragraph 8 above, if any, is/are not:
- i. Residential burglary;
  - ii. Commercial burglary;
  - iii. Breaking or entering; or
  - iv. Fourth and/or subsequent offense of driving while intoxicated.
11. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.

4. The terms and conditions of Defendant's probation included the requirement that the Defendant successfully complete an approved drug court program.
5. The Defendant has successfully completed a drug court program.
6. The Defendant has received aftercare programming.
7. ☐ The Defendant has no pending felony charges in any state or federal court; or  
☐ The Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:  
\_\_\_\_\_  
\_\_\_\_\_
8. If applicable, on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, in case number(s) \_\_\_\_\_ in Example County County Example County Court the Defendant previously plead guilty or nolo contendere to or was found guilty of \_\_\_\_\_, in violation of A.C.A. § \_\_\_\_\_.
9. The offense(s) listed in Paragraph 8 above, if any, is/are a target offense as defined in A.C.A. § 16- 93 -1202(10)(A)(i).
10. The offense(s) listed in Paragraph 8 above, if any, is/are not:
- i. Residential burglary;
  - ii. Commercial burglary;
  - iii. Breaking or entering; or
  - iv. Fourth and/or subsequent offense of driving while intoxicated.
11. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.

12. The Defendant has paid all filing fees mandated by  
A.C.A §16- 90-1419.

13. As evidenced by the signature below, the above information is  
true and correct to the best of Defendant’s knowledge.

WHEREFORE, the Defendant, \_\_\_\_\_, prays  
this Court enter an Order Dismissing And Sealing the above-referenced  
case pursuant to A.C.A.§16-98-303 .

FURTHER, if applicable, the Defendant, \_\_\_\_\_,  
prays this Court enter an Order Sealing case number(s) \_\_\_\_\_  
from \_\_\_\_\_ County \_\_\_\_\_ Court pursuant to A.C.A.§16-98 - 303.

\_\_\_\_\_  
Defendant’s Signature

\_\_\_\_\_  
Date

THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER  
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND  
NATIONAL RECORD SYSTEMS

|            |                              |
|------------|------------------------------|
| Race _____ | Arrest Tracking Number _____ |
| Sex _____  | SID No. _____                |
| DOB _____  | FBI No. (if known) _____     |

12. The Defendant has paid all filing fees mandated by  
A.C.A §16- 90-1419.

13. As evidenced by the signature below, the above information is  
true and correct to the best of Defendant’s knowledge.

WHEREFORE, the Defendant, Jordan Avery Reyes \_\_\_\_\_, prays  
this Court enter an Order Dismissing And Sealing the above-referenced  
case pursuant to A.C.A.§16-98-303 .

FURTHER, if applicable, the Defendant, Jordan Avery Reyes \_\_\_\_\_,  
prays this Court enter an Order Sealing case number(s) \_\_\_\_\_  
from 24-CR-001234 County Example County Court pursuant to A.C.A.§16-98 - 303.

\_\_\_\_\_  
Defendant’s Signature

\_\_\_\_\_  
Date

THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER  
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND  
NATIONAL RECORD SYSTEMS

|            |                              |
|------------|------------------------------|
| Race _____ | Arrest Tracking Number _____ |
| Sex _____  | SID No. _____                |
| DOB _____  | FBI No. (if known) _____     |

Certificate of Service

I, \_\_\_\_\_, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

\_\_\_\_\_  
Defendant or Defendant's Attorney

\_\_\_\_\_  
Date

Certificate of Service

I, \_\_\_\_\_, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

\_\_\_\_\_  
Defendant or Defendant's Attorney

\_\_\_\_\_  
Date